



PRE-QUALIFIED PROPOSED TERMS

Funding Amount	Type	Terms
\$	Line of Credit	10 - 30 Year
Interest Rate	Purpose	Fee Due at Closing
	Business	10 %

Any rates quoted are only an indication of current rates at the time of this prequalification letter. The interest rate will need to be locked prior to closing the loan. This is a preliminary determination that you qualify for a loan under our current lending standards and guidelines. This letter should not be construed as formal loan approval. If final approval is granted for your loan, the terms, loan amount, and conditions may be different than what is described here.

This prequalification is based on information provided by you and still subject to verification by the lender, including credit score, and business and personal background verification.



To accept the Pre-Qualified terms above complete the below.

This Agreement ("Agreement") is made effective as of the dates below by and between Alternative Funding Solutions (AFS) and the authorized signer on behalf of the business named below ("Business").

1. **DESCRIPTION OF SERVICES.** NY has successfully provided to business the service of processing an application and loan packaging for the purpose of providing a credit facility that has been approved by the bank and accepted by the client.
2. **CONFIDENTIALITY:** The Parties, Alternative Funding Solutions (AFS), and the business, hereby acknowledge and agree that all information disclosed during the term of this agreement, whether oral, written, or otherwise, is confidential and proprietary. Both Parties commit to keeping this information confidential and not disclosing it to any third parties without prior written consent. Both Parties understand and agree that the business's financial information may be shared with the bank solely for the purpose of applying for a loan. Discussion of this agreement with the bank, bankers or staff is strictly prohibited, and any unauthorized disclosure may result in legal remedies and damages.
3. **WARRANTY.** AFS shall provide its services and meets its obligations under this Agreement in a timely and workmanlike manner.
4. **ENTIRE AGREEMENT.** This Agreement contains the entire agreement of the parties, and there are no other promises or conditions in any other agreement whether oral or written concerning the subject matter of the Agreement. This Agreement supersedes any prior written or oral agreements between the parties.
5. **GOVERNING LAW.** This Agreement shall be construed in accordance only with the laws of the State of New York.
6. **ARBITRATION.** Any dispute arising from or related to this Agreement shall be resolved through arbitration administered by the American Arbitration Association in accordance with its Commercial Arbitration Rules, with a single arbitrator appointed by mutual agreement or by the AAA. The arbitration shall be conducted in New York, NY, with the arbitrator's decision being final and binding, enforceable in any court of competent jurisdiction. The prevailing party shall be entitled to recover reasonable attorneys' fees and costs. This clause does not preclude either party from seeking injunctive relief in court. By signing this Agreement, the parties waive their right to a jury trial and participation in class actions.



7. **PAYMENT FOR SERVICES.** In exchange for services rendered Business will pay a fixed fee as compensation to AFS for completed services of ten percent (10%) of the facility size amount payable in a lump sum electronically via ACH. Upon signing closing documents of facility arranged by AFS.

Alternative Funding Solutions
348 RXR Plaza
New York, NY 11556

PNC Bank
ABA: 031207607
ACCOUNT: 8144427798

The business authorizes AFS to withdraw from the new bank account or Business Line of Credit arranged by AFS, which will be provided and added to this agreement during the closing process. This authorization is provided to facilitate a timely and efficient payment process in accordance with the terms agreed upon between the Business and AFS.

Routing Number	
Account Number	

8. **LATE FEE.** If payment is not arranged within 5 business days of signing the closing documents of the facility, AFS will issue the maximum late fee allowed by the state where the business resides, not to exceed 2% per month of the outstanding balance. If needed, AFS will grant extensions until business has access to the credit facility via in person, online or by phone.
9. **REMEDIES.** In addition to any and all other rights a party may have available according to law, if Business fails to make a monetary payment when due, AFS will seek relief from the courts for the entire amount due plus legal and attorney's fees.



DISCLOSURE STATEMENT

The borrower acknowledges by signing below that they understand the following:

1. Alternative Funding Solutions is not a direct lender in this transaction.
2. Actual funds are provided by another entity, final terms may differ from the aforementioned quotes above.
3. The banks we connect you with are not associated with this consulting agreement. The bankers we introduce you to do not know about any fees you owe Alternative Funding Solutions after a transaction is done.
4. Once Business agrees and signs the closing documents with the financial institution, AFS has completed its services and the compensation is deemed earned and **NON-REFUNDABLE**. AFS is not responsible or liable for any future policy changes by the institution, which can include cancellation of the credit facility.
5. Business understands that if the financial institution counter offers with a different amount, or a different product, such as SBA or term loan and borrower decides to proceed, Business is obligated to pay AFS for its consulting services.
6. If Business is pre-approved for multiple credit facilities, Business understands that additional facilities will not be provided until AFS compensation on the first transaction is satisfied.
7. In the event that the financial institution issues an approval, and the borrower chooses not to proceed, a one-time underwriting fee of \$0 shall be assessed to the Business. This fee shall NOT be applicable if the approved amount by the financial institution falls below \$50,000 from the maximum proposed approval or if the interest rate exceeds 14%, as stipulated in the pre-approval terms above.
8. Business gives authorization to the bankers to provide updates solely about the application requirements and status to AFS. AFS agrees that all information received is to be treated as confidential

THE UNDERSIGNED BUSINESS HAS READ AND UNDERSTANDS THE ABOVE DISCLOSURE STATEMENT OR HAS HAD THE CONTENTS EXPLAINED BY SOMEONE NOT CONNECTED TO ALTERNATIVE FUNDING SOLUTIONS.

Please acknowledge the acceptance of this proposal by signing below and returning the signed, original Term sheet.

If this proposal is not accepted by the date, it will be considered void, and all terms and conditions herein will be subject to renegotiation.

ACKNOWLEDGEMENT

I/We have read the above document; acknowledge and agree to the terms above.

Alternative Funding Solutions

Date:

Date:



Authorization to Alternative Funding Solutions

I, the undersigned, have retained Alternative Funding Solutions as our consultants and hereby authorize the following actions related to my application for financing:

Application Submission: I authorize Alternative Funding Solutions to submit my application and all required documents to the bank on my behalf.

Updates and Communication: I authorize Alternative Funding Solutions to receive updates and communications regarding the status of my application regularly from the bank.

Document Review and Retention: I authorize Alternative Funding Solutions to review and if needed negotiate the terms of all closing documents related to my financing application. I will conduct the final review and provide the all the required signatures.

I further authorize Alternative Funding Solutions to receive and retain a copy of the final signed documents for compliance record keeping.

Post-Transaction: The transaction is considered completed once the bank has provided the credit facility to the business or the application has been declined by the bank. Once completed, Alternative Funding Solutions will no longer be required to receive any information regarding the account, balances, transfers, or any other details unless authorized verbally or in writing by the client.

This authorization is valid from the date signed below until the completion of the financing process unless both I and Alternative Funding Solutions authorize change verbally or in writing.

Name:

Date: